

Serial No.23
Regular List

HIGH COURT OF MEGHALAYA
AT SHILLONG

WP(C). No. 195 of 2020

Date of Order: 22.09.2020

All Meghalaya Primary School Teachers Association & 254 Ors. Vs. State of Meghalaya & 11 Ors.

Coram:

Hon'ble Mr. Justice Ranjit More, Judge.

Appearance:

For the Petitioner/Appellant(s) : Mr. S.Khurshid, Sr. Adv. with
Mr. P.Yobin, Adv.
Mr. K.V.Kharlyngdoh, Adv.
Ms. L.Naaz, Adv.

For the Respondent(s) : Mr. A.Kumar, AG with
Mr. N.D.Chullai, AAG
Mr. S.Sengupta, Addl. Sr. GA
Mr. A.Kharwanlang, GA.

1. Heard learned counsel for the respective parties.
2. Vide advertisement dated 10-12-2008 applications were invited by the Deputy Inspector of Schools for recruitment to the post of Assistant Teachers in Government Lower Primary Schools. 4928 candidates appeared in 15 Centres (Sub-Divisions). The process of selection culminated in appointment of **749** candidates which includes the petitioners.
3. The entire process including the appointment was challenged by the non-selected aggrieved candidates by filing 9 writ petitions with lead petition WP(C). No. 106 (SH)/2010. The said writ petitions were disposed of by a common judgment dated 21-10-2011 by the then Shillong Bench of the Gauhati High Court as it then was.

4. In the judgment, it had been noticed that under the Right to Information Act, 2005, the Public Information Officer in the Directorate of Elementary & Mass Education, Meghalaya vide letter dated 01-02-2010 supplied the information to the writ petitioners based on which the writ petitioners had alleged widespread manipulation, favoritism and illegality. There was also widespread condemnation and criticism, even one NGO had lodged an FIR against the officers/officials responsible for illegal alteration, addition and overwriting the score sheets and for the irregular allocation of marks to the favourite candidates having political backing.

5. After considering the respective pleadings and submissions made by their counsel, petitions were allowed. The CBI was directed to enquire into the allegations and submit the report within a period of three months from the date of receipt of the copy of the judgment.

6. Aggrieved by the said judgment of the learned Single Judge dated 21-10-2011, bunch of writ appeals were filed by the aggrieved parties including the State of Meghalaya with lead Writ Appeal No. 52(SH)/2011 before the Gauhati High Court. The Division Bench of this Court by detailed judgment dated 02-11-2017 decided the said Writ Appeal No. 52/2011 along with connected appeals. The operative part of the order reads as follows:

“Conclusion and Directions:

Accordingly and in view of the above:

- (a) *The whole of selection process under the advertisement dated 10-12-2008, as issued by the Deputy Inspector of Schools in pursuance of Notification dated 24-11-2008, is held vitiated in relation to Shillong Sardar, Jowai, Amlarem, Tura and Dadenggre Centres: and is annulled subject to the proviso that only the candidates who have been treated as untainted/unblemished both in the reports of CBI and HLSC and are in service, may be allowed to continue as stop-gap arrangement until fresh selection takes place.*
- (b) *The prayer of other untainted/unblemished candidates of the said five Centres for induction in service stands rejected.*
- (c) *However, all the untainted/unblemished candidates of the said five Centres, whether in service or not, shall be allowed to participate in the fresh selection process, if otherwise eligible in accordance with the presently*

applicable Rules/Guidelines, without necessity of their applying afresh. In this regard it is also provided that none of such untainted/ unblemished candidates shall be treated as age-barred if he/she was within the age prescribed by the notification dated 24-11-2008.

- (d) None of the candidates who has been found tainted/blemished, whether in the report of CBI or in the report of HLSC or both as also none of the candidates who had been recommended by the public representative shall be taken or retained in service even in stop-gap arrangement and the service of every such candidate, who is yet continuing, whether by way of regular appointment or in ad hoc arrangement, shall stand terminated with immediate effect.*

2. For the candidates who have been found tainted/blemished in the CBI report and/or HLSC report for Shillong Sadar, Jowai, Amlarem, Tura and Dadenggre, it is provided that any such candidate, if so desires, may make a representation, within 30 days from today, to the Chief Secretary to the Government of Meghalaya for consideration as untainted candidate. The Chief Secretary shall get such representation/s examined by a three-member Committee, comprising of himself; and one member from the State Civil Services having unblemished service record and of impeccable integrity; and one independent member from any Central or State Educational Institution or University. The said Committee shall take decision on such representation/s within 60 days of making; and if the Committee would accept the representation and treat the candidate as untainted, he/she shall be entitled to the right of participation in the fresh selection process at par with other untainted candidates. It is, however, made clear that if the Committee would confirm the tainted character of any such candidate, he/she shall stand permanently debarred from seeking any Government employment and shall also be liable for penalty quantified in the sum of Rs. 50,000/- (fifty thousand) that shall be deposited in the State Disaster Management Fund.

3. So far the Centres other than Shillong Sadar, Jowai, Amlarem, Tura and Dadenggre are concerned, it is directed that:

- a) CBI shall carry out similar nature inquiry, as carried out earlier in pursuance of the order date 21.10.2011 and shall similarly segregate the tainted and untainted candidates and submit its report to the Chief Secretary within six months from today. For this purpose, the State Government shall, within two weeks from today, hand over the entire record relating to all the Centres to the CBI without fail.*
- b) As soon as the report is submitted by the CBI, it shall be required of the Chief Secretary to act on such report of*

CBI through the same Committee as ordered hereinabove. In this regard, it is provided that:

- i) The said Committee headed by the Chief Secretary shall examine the report of CBI and shall carry out such further inquiry as deemed fit and necessary but shall make final recommendation to the State Government within 3 months of receipt of the report from CBI.*
 - ii) If large scale manipulations and/or interference of public representative or any other person are found, the Committee may recommend scrapping of whole of the selection process of that Centre too; and the State Government shall act accordingly. In such an eventuality, the directions in the foregoing paragraphs 1 and 2 shall apply.*
 - iii) If no illegalities and manipulations are found in any Centre or if the extent of irregularities in any particular Centre are not of higher magnitude and no case of interference by any public representative or any other person is found, the selection process of such Centre may be approved by the Committee subject to appropriate orders relating to the tainted or blameworthy candidate, if any; and the State Government shall act accordingly.*
- 4(a) Laitumkhrah P.S. Case No. 62(7) of 2011 stands withdrawn from the State Police and stands transferred to the CBI for appropriate investigation and submission of its result within six months from today.*
- (b) The Case Diary of Laitumkhrah P.S. Case No. 62(7) of 2011 as submitted by the State Government, shall be handed over to the learned counsel for CBI for onward transmission to the Superintendent of Police, CBI, Shillong.*
- (c) The other records of CBI pertaining to the inquiry proceedings in PE2(A)/2011-SHG shall also be handed over to the learned counsel for CBI for onward transmission to the Superintendent of Police, CBI, Shillong.*

5. The disciplinary proceedings against the then Director, Elementary and Mass Education shall continue and the case file of disciplinary proceedings be returned to the learned Advocate General for appropriate transmission. The other certified copies and the documents in relation to the proceedings of the HLSC as also appointment orders be handed over to the learned Advocate General.

6. All the appeals and writ petition in this group stand disposed of accordingly with no order as to costs.”

7. Aggrieved by the said judgment dated 02-11-2017, Special Leave to Appeal (C) No(s) 33995-34027 of 2017 were filed by the State as well as

other aggrieved parties. In addition to this, the petitioner No. 1 herein also filed I.A. No. 18297 of 2018 for leave to appeal which has been shown as Diary No(s). 42552 of 2017 (XIV). Vide order dated 06-04-2018, the Hon'ble Supreme Court has dismissed SLP (C) No(s). 33995-34027 of 2017 whereas, petition of the petitioner No. 1 herein i.e. SLP (C) No....Diary No. 40348 of 2017 has been disposed of with following order:

“Permission to file special leave petition is granted.

Grievance of the petitioners is that they were not heard by the High Court. If it is so, they are at liberty to move the High Court within two weeks from today so that the High Court may hear their grievance, if they were not heard earlier. After hearing the parties, it will be open to the High Court to pass any further order in accordance with law.

The special leave petition (s) is accordingly disposed of.

Pending applications, if any, shall also stand disposed of.”

8. Pursuant to the above order of the Apex Court in Diary No. 40348 of 2017, Review Petition No. 3/2018 came to be filed before the Division Bench of this Court. This Review Petition was disposed of by order dated 14-12-2018. The operative part of the order is reproduced below:

“24. For the stated reasons and the law as referred to above, in our considered opinion, in the judgment under review dated 02.11.2017, direction 1 (a) providing that “the candidates who have been treated as untainted/unblemished both in the enquiry reports of CBI and HLSC and are in service, may be allowed to continue as stop-gap arrangement until fresh selection takes place” to the extent as underlined is an error apparent on the face of the record which error is further compounded by the fact that on completion of the investigation by CBI, fifty (50) candidates have been finally found untainted. How could such candidates be directed to continue as stop-gap arrangement. Such untainted/unblemished candidates cannot be denied their right to continue as per their valid selection and orders of appointment.

*25. The direction No. 1 (a) of the judgment dated 02.11.2017 to the extent “**as stop-gap arrangement until fresh selection takes place**” indicated and underlined hereinabove at para 24 is recalled. Review petition accordingly succeeds and is disposed of with a direction to the respondents (authorities) that the selection/appointment of fifty (50) untainted candidates named and referred to in para 18 hereinabove shall not be disturbed and shall be allowed to continue and absorbed as per*

the terms and conditions of their selection and consequent appointment orders.”

9. In the present writ petition, we are concerned with the candidates from Sohra, Nongpoh, Mairang, Nongstoin, Mawkyrwat, Khliehriat, Resubelpara and Baghmara. These teachers were governed by para 3 of the operative part of the order reproduced above in WA. No. 52/2011. In pursuant of the direction contained in para 3 of the operative part of the order in WA. No. 52/2011, CBI carried the inquiry and file report to the Chief Secretary where 260 teachers were found to be tainted. Thereafter, their services were terminated in terms of the judgment of the Division Bench passed in WA. No. 52/2011 and connected appeals. Out of those 260 teachers, 3 teachers have already expired and another 3 teachers have got job somewhere else. The remaining 254 teachers has approached this Court by filing above petition challenging their termination mainly on the ground that principle of natural justice was not followed and that issuance of show cause notice would be mandatory precondition to passing of any order.

10. Mr. S.Khurshid, learned Sr. counsel however while arguing this matter on behalf of the petitioners made a short grievance that the petitioners are entitled for similar treatment as was given to the tainted teachers from the 5 Centres namely, Shillong, Jowai, Amlarem, Tura and Dadenggre. He submits that in terms of para 2 of the operative part of the order in WA. No. 52/2011, the petitioners also ought to have been given the opportunity to file representation before the Committee headed by the Chief Secretary/Additional Chief Secretary.

11. Learned AG for the respondents submits that liberty to file representation before the Committee headed by the Chief Secretary/Additional Chief Secretary was given to the petitioners who are the tainted teachers from 8 Centres namely, Sohra, Nongpoh, Mairang, Nongstoin, Mawkyrwat, Khliehriat, Resubelpara and Baghmara. However, the petitioners have not file such representation within 30 days.

12. Mr. S. Khurshid, learned Sr. counsel for the petitioners in response to the AG's submission contended that the petitioners could not file representation within 30 days as stipulated in para 2 of the operative part of the order in WA. No. 52/2011 inasmuch as copy of the indictment report of the CBI was not made available to them. He further submitted that recently in the proceedings of the present writ petition, petitioner's indictment report of the CBI was annexed alongwith the affidavit in reply of the respondents and therefore, petitioners may be given opportunity to file representation before the Committee headed by the Chief Secretary/Additional Chief Secretary.

13. Clause 3(b)(ii) of the operative part of the order in WA.No.52/2011 makes it abundantly clear that the observation in para 1 & 2 is also applicable to the tainted teachers from 8 Centres mentioned above namely, Sohra, Nongpoh, Mairang, Nongstoin, Mawkyrwat, Khliehriat, Resubelpara and Baghmara. It is true, by observation of para 2 of the operative part of the order in WA. No. 52/2011, representation on the part of tainted teachers had to be made within the period of 30 days. However, admittedly, before termination of the petitioner's services, the indictment report of the CBI was not made available to them. There is no dispute that said report was placed on record along with affidavit in reply filed by the respondents in the present proceedings. In my view, the petitioners could not have filed representation as contemplated in para 2 of the operative part of the order in WA. No. 52/2011 without knowing the material against them. In my view, the present petitioners also are entitled to claim parity along with the tainted teachers from 5 Centres namely, Shillong, Jowai, Amlarem, Tura and Dadenggre. The petitioners are entitled to similar treatment as was given to the tainted teachers from the above 5 Centres.

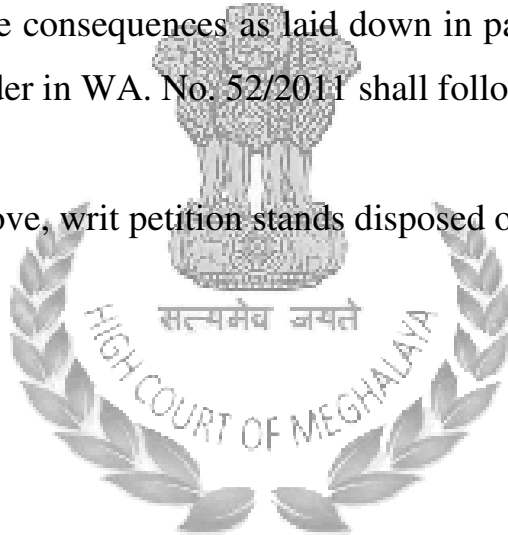
14. In the above facts and circumstances, in my view, interest of justice would be sub served by passing following order:

- (i) The petitioners are at liberty to file representation before the Committee headed by the Chief Secretary/Additional Chief Secretary,

Government of Meghalaya. Such representation shall be filed within 30 days from today for considering them as untainted teachers. The Committee headed by Chief Secretary/Additional Chief Secretary shall examine the petitioners representation as per direction contained in para 2 of operative part of the order in WA. No. 52/2011 and shall take decision on such representation within a period of 60 days from the date of receipt of the representation.

(ii) If the Committee accepts the representation and treat the candidates as untainted, the respondents shall revoke the termination of those teachers and they shall continue in their services as Assistant Teachers in terms of order dated 14-12-2018 passed by the Division Bench in Review Petition No. 3/2018. So far as petitioners/candidates whose tainted character is confirmed by the said Committee are concerned, the consequences as laid down in para 2 of the operative part of the order in WA. No. 52/2011 shall follow.

15. Subject to above, writ petition stands disposed of.



Judge

Meghalaya
22.09.2020
"Samantha PS"